



POLICE DEPARTMENT

March 23, 2012

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Denise James
Tax Registry No. 925508
60 Precinct
Disciplinary Case No. 2008-0687 (85652/09)

The above-named member of the Department appeared before the Court on January 20, 2012, charged with the following:

1. Said Police Officer Denise James, assigned to the 60th Precinct, while on duty on March 20, 2008, at approximately 1030 hours, while inside the 60th Precinct stationhouse, Kings County, having arrested Person A, did abuse her authority as a member of the New York City Police Department, in that said Police Officer James conducted a strip search of Person A without obtaining the authorization of the Desk Officer, 60th Precinct.

P.G. 208-05, Page 2, Paragraph 1 – ARREST - GENERAL SEARCH GUIDELINES

2. Said Police Officer Denise James, assigned as aforesaid, at time, date and location set forth in Specification One, did abuse her authority as a member of the New York City Police Department, in that said Police Officer James, having conducted a strip search of Person A did thereafter fail to document the strip search in the Command Log, her Activity Log, or in either the OLBS Arrest Worksheet or Arrest Report Supplement.

P.G. 208-05, Page 2, Paragraph 3 ARREST - GENERAL SEARCH GUIDELINES

The Department was represented by Mary Lynne Frey, Esq., Department Advocate's Office. Respondent was represented by Michael Martinez, Esq., Worth, Longworth, & London, LLP.

Respondent, through counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department did not call any witnesses. It introduced into evidence the Civilian Complaint Review Board (CCRB) interview of Person A.

CCRB Interview of Person A (see DX 1, recording; DX 1a, transcript)

Person A was interviewed on March 28, 2008. She stated that on March 20, 2008 (a Thursday), at approximately 1030 hours, she was at William E. Grady Career and Technical Education High School. She had just come from a parent-teacher conference. Her friend was with her. Person A was wearing a long leather-and-fur coat and long stiletto-heel boots. She was carrying a pocketbook and had her keys in her hand.

While Person A was outside the school gate but still on the sidewalk next to the school, a police van pulled up. The police were speaking to a student crossing the street. A police officer, Respondent, asked Person A or her friend, "[A]re you a student?" Person A responded, "[A] student?" and looked at her friend because Person A did not resemble a student. She was 35 years old and had three children, the oldest of whom was 17 years old. Person A later admitted, however, "I

mean, gosh, I guess I look young, but not that young for someone to think I'm a high school student."

Person A and her friend looked at each other with amusement. Person A told Respondent, "[Y]eah, I'm a student, but certainly not here," and kept walking.

Person A said that the officer came toward her "very aggressively" and said, "[L]et me get your program card." Person A told her she did not have one. When the officer asked for identification (ID), Person A asked why she needed it if she was not a student. The officer said, "[O]h, . . . now you're not a student?" Person A clarified that she was not a Grady student. She reached into her bag to give her identification, as her friend emphasized to the officer. Person A said that Respondent placed her body against Person A's and pushed her against the school building. Respondent pushed the back of Person A's neck against the wall. Person A denied "physically touch[ing]" Respondent in return. When asked if she physically resisted Respondent's attempt to handcuff her, Person A answered, "I don't think I resist, but because her body was up against me, of course I'm going to be it's not like she said . . . I'm going to arrest you, and I'm telling her, no, you ain't arresting me." Person A, who had noted, "I don't know if they're supposed to read me my rights, you know, like you see on TV, whatever," maintained that Respondent never said anything like, "I'm placing you underneath arrest, they're supposed to read you rights."

Person A asked Respondent why she was harassing her, and Person A's friend told Respondent that Person A was a parent, at school to see "her children's teacher." A male black officer pinned Person A against the wall and Respondent pulled her hair, wrapping it around her hand. Respondent told Person A, "[N]ow your ass is getting arrested." A third officer had to hold back Person A's friend, who was telling the police to leave Person A alone. "You wouldn't believe the

amount of patrol cars that came at the scene as if I was a criminal.” There were approximately three police vehicles. Respondent told Person A’s friend, “She was she’s a student, and I asked her for her ID. She didn’t give me her ID, and now, guess what? She’s going to jail.”

The school’s dean came outside and told the police that Person A was a parent, not a student. Person A told one of the other officers that she was a college nursing student. The officers kept telling Person A to “shut the hell up.” One of the officers, however, realized that the situation was uncalled for. She shook her head and walked away. She told Person A, “I know that you’re probably upset. I know this shouldn’t happen, but you know what, just don’t make it worse on yourself. Calm down, and we’ll just give you a summons, and you go home.”

Person A later found out that her daughter and her friends were watching the scene through the windows.

Person A was placed in a police van. Her pocketbook was laying on one of the seats. It was not open, but when she reached for it, a white male officer “pounced on me,” saying, “What are you doing?” When Person A protested that she did not know she was not supposed to do that, he said, “[Y]ou know what, keep it up. Keep it up.” When she protested again, he told her to “shut the fuck up.”

When Person A was removed from the van, Respondent grabbed her and Henry twisted her foot. When Person A protested, Respondent replied, “I could do whatever I want to. You are my prisoner.” Person A protested, “I’m not your prisoner, okay? I’m not no one’s prisoner.” Respondent told her, “Keep it up. Keep it up with your mouth.”

Person A was brought before the desk. She did not recall being “patted down or anything” there, but her pocketbook was searched. The desk officer did not look at Person A or even say, “[m]a’am, what happened, so I could explain to him.” He did not bother to do this because

Respondent told him, "Sarge, you told me to go out there and do my job, and . . . not even a half hour I'm out there. See? I brought you back in a truant." Person A tried to talk to the desk officer, but the white male officer said, "Calm down, and the most you'll get is a summons and go home. Person A told him that this was like telling one of her nursing patients to calm down but not giving him any pain medication. The police, Person A said, should not expect her to stay silent when she knew she had done nothing wrong.

Respondent then took Person A to the holding cell and told her, "[O]h, I got to search you." Respondent placed Person A in the bathroom and said she would "pull up the door a little bit." Respondent removed the handcuffs and told Person A to put her hands at her sides.

In Person A's narrative explanation of the incident, she recounted that Respondent told her to "take off—pull my bra and stuff, and she searched me, and she's searching inside of my clothes and all of that." She searched "underneath my bra and stuff like that."

Upon questioning by the CCRB investigator, Person A stated that she was wearing a "skintight" turtleneck sweater. Respondent told her to "hold up" the sweater, "hold it up like this." Respondent then "went around my bra." She "[f]elt underneath it and went around the line of the bra, like went around it like that." Person A was not wearing a belt. Respondent "went around the waistband" with her hands. When asked, "And were your breasts ever exposed? Did she ever have you take your bra off?," Henry said, "Yeah, my bra was unsnapped in the back." When asked, "Did she do that, or did she tell you to do that?," Person A said, "I think I'm the one that did that." When asked, "[W]as the bra off or lifted up completely?," Henry answered, "Yeah, it was lifted up. She saw my bare breasts."

Respondent told Person A to remove her shoes, and Person A complied. Respondent looked inside the shoes, "tapped inside . . . my boots." Respondent then placed her into the holding cell.

Person A said that when Respondent fingerprinted her, Respondent was pressing her hands. They were bleeding at the time, and Person A told her that it hurt. Person A indicated to the investigator that Respondent caused her to bleed. The investigator asked about “the knuckles;” Person A did not know “how that occurred.” Person A maintained, however, that Respondent injured her hands, and stated that she told Respondent so. Respondent returned with a form regarding medical attention, but told Person A, “You want to go to the hospital? I hope you know you’re going to be handcuffed to a bed for a couple hours.”

Respondent found out that she and Person A were the same age. Person A told Respondent that she never would have mistaken her for a high school student, “How’s that?” This “pissed off” Respondent, who took a long time with Person A’s paperwork. Even though Person A had no warrants, Respondent told her she had to “go[] through the system” and it was out of her hands.

A sergeant on the next “shift” spoke to Person A around 1700 hours. He asked her, “[W]hat are you doing?,” in a manner that implied, “Like, what is a woman like you doing in the cell?” She told him what happened.

Person A was taken to central booking. She recognized the transporting sergeant as someone whose grandmother she had taken care of in a nursing home. The sergeant said, “[O]h, my God, I’m so sorry this happened to you, you know, whatever.” By the time Person A got to central booking, it was 2230 or 2300 hours. It was too late to see the judge, so she had to spend the night there in a cell with 17 other women. In the morning, Person A saw the judge, who apologized to her and told her that she was free to go. As long as she stayed out of trouble for six months, her case would be “thrown out.”

Person A stated that she was planning on filing a civil action against the city. She showed the CCRB investigator “underneath my arm where they grabbed me” either going into or out of

the van. "I know it's probably going away, but do you see it?" The investigator answered affirmatively. Person A had also missed two days of work. Her lawyer referred her to CCRB "I guess because they didn't beat me up or anything like that."

The investigator stated that he was taking photographs of Person A's arm and knuckles, and asked her to display them. Referring to one of the injuries, Person A said that it had been reddened and suppurated earlier in the week.

No photographs were offered into evidence by either side at trial.

Respondent's Case

Respondent testified on her own behalf. She also introduced into evidence the CCRB interview of the desk officer at the time of the incident, now-retired Sergeant Frank Lukas.

Respondent

Respondent had been a member of the Department for nearly 12 years. She was assigned to the 60 Precinct right from the Police Academy. At the time of trial, she was the crime prevention officer. Prior to that, she was in the conditions unit, and patrol before that.

On March 20, 2008, Respondent was assigned to the conditions unit. That day, however, she received a specific assignment by "[t]he sergeant" to handle truancy. She, Police Officer Eric Jensen and one other officer were using a marked police van for their assignment. Their duties were as follows: if they observed "kids outside," they were to ask them for ID and their program card to see if they were supposed to be in school. If they were, the officers were to take them to a central location known as a truancy center and call their parents.

Respondent testified that at approximately 1050 hours, her team was driving near Grady High School. Person A and a few others were exiting the school. Respondent said to Person A, "[E]xcuse me, are you supposed to be in school now?" Person A answered, "[O]h, yeah, I'm a student here. Why you stopping me for?" Respondent said, "[E]xcuse me, can I have your ID and your program?" Person A replied, "I am not giving you shit" and shoved Respondent's shoulder to get past.

Respondent told Person A she could not place her hands on the officer and arrested her. Respondent also noted that when she told Person A, "[Y]ou see that I'm a police officer in full uniform. If you are supposed to be in school," Person A started cursing and flailing her arms. It was then that she got arrested. Jensen helped Respondent handcuff Person A. Several students and neighbors came to see what was going on. Respondent conducted a pat-down of Person A on the street. Person A was placed in the van for transport to the 60 Precinct station house, under arrest for disorderly conduct.

Respondent testified that Person A "[o]ne hundred percent, absolutely," looked like a student at the time of the original encounter. She was wearing "like a big blond wig." Later, Respondent examined Person A's ID and asked Person A if that was really her and her date of birth. She said yes, and Respondent realized that she was much too old for high school.

Respondent presented Person A in front of the desk to the desk sergeant and told him what happened. She gave Person A a quick pat-down and searched her pockets. Respondent did not recall if Person A had a pocketbook, but she would have had her empty it if she did. Respondent then took her to the back of the cell area, where the bathroom was located.

Respondent took Person A into the bathroom because she was a female. Respondent gave her the courtesy of searching her there rather than in front of the male desk officer. Also, if

Respondent were to search a female in the cell area, the male prisoners “start getting loud. Oh, take it off, and they start getting a little crazy.” Using the bathroom afforded Respondent a little more privacy. The bathroom was an enclosed room; there were no toilets in the cells.

Respondent asked Person A to “go in her pockets, take the coat off.” Respondent then asked her “to lift up. A lot of times the perps have their shirts tucked in their pants, so I asked her to lift up, take out the bra, shake it.”

When Person A pulled her shirt out of her pants, Respondent went around the rim of her pants with her hands. She did the same thing with the back and shoulder bra straps “because sometimes if they are padded, they stuff stuff in it.” She was actually pulling on the straps to see if anything was there. Respondent’s hands were on the outside of Person A’s clothing at all times. She also asked Person A to remove her shoes and socks.

Respondent did not mean that Person A should “take [] out [the bra] obviously over her clothing.” She meant that the prisoner should shake out her bra and grab onto it to release any contraband that could be concealed therein. Respondent never saw Person A’s bra, nipple area or naked breasts. She did not have Person A “pull her shirt off” or remove her bra.

Respondent testified that the entire search took three to five minutes. She did not find any contraband. Person A did not protest or give Respondent any problems. She was placed inside the cell.

Respondent denied that what she did constituted a strip search because she did not remove each piece of the prisoner’s clothing until she was completely naked. This had to be authorized by a sergeant. In her career, Respondent had made around 200 arrests, about half of them females. She had searched those females. Never had she conducted a strip search, been present for one, or gotten authorization from a sergeant to do one.

On cross examination, Respondent stated that she found out later that Person A was 35 years old. She also learned that Person A was at the school for a parent-teacher conference.

Respondent testified that while arrestees occasionally came when “their pants are like hanging halfway down,” she had never removed someone’s clothes and exposed her undergarments during a search. She was aware that such exposure constituted a strip search.

Respondent testified that when she described the search in her CCRB interview as “lifting up her shirt and turning it inside out,” she meant that she told Person A to ball or roll up the bottom of her shirt and lift that portion to about her navel. She did not mean for the prisoner to remove her shirt and turn it inside out. Nor did Respondent have Person A turn out her sleeves or the shoulder portion of her shirt.

After this part of the search, Respondent told Person A to put her shirt back down, place her hands outside her shirt, lift her bra out, and shake it. Respondent asserted that she had Person A grab her shirt and bra from the outside of her shirt, and shake both.

Respondent stated that the Patrol Guide would have permitted her to conduct in front of the desk the search that she performed in the bathroom.

Respondent denied that the reason she took Person A into the bathroom was that she knew her undergarments or breasts were going to be exposed. The bathroom had a door that could close.

CCRB Interview of Sergeant Frank Lukas (see RX A, recording)

Lukas was assigned to the 60 Precinct. On March 20, 2008, he worked a 0655x1552 tour and was assigned as the desk officer. He recalled that around 1030 or 1100 hours, Respondent

brought in an arrest. Respondent had arrested her near or in front of a school, but Lukas did not know the details.

Lukas described the arrestee as “very irate.” She was screaming very loudly and cursing. He did not observe any injuries and logged her into the command log.

Lukas stated that Respondent did not search the arrestee at the desk. He first said that Respondent did not even search the arrestee’s pockets, but when his representative asked, “Did they do a cursory a preliminary search at the desk? Emptied their pockets?” Lukas answered, “Of course.” He described this as a “frisk.” Lukas did not recall if any property was removed during this.

Lukas stated that Respondent took the arrestee to “the private area,” the bathroom, because she was a female. Lukas was sure Respondent was back there because she was the arresting officer. This bathroom was within the cell but had a door that could close.

Lukas said that “you’re not going to search” the female prisoner “where you’d normally search the males,” which was in front of the cells.

Respondent never requested a strip search and none was authorized. Lukas never heard the prisoner complain of one. If a strip search were to be conducted, it could be done in the same area Respondent took the prisoner.

FINDINGS AND ANALYSIS

Respondent is charged with conducting a strip search of an arrestee, Person A, at the 60 Precinct station house without obtaining the authority of the desk officer. She is also charged with failing to notate this strip search in the command log, her activity log, and other arrest documents. The first question must be whether a strip search took place. It was the

Department's contention that Respondent took Henry to the bathroom and strip-searched her. Respondent contended that the search she performed was proper and not a strip search.

Respondent arrested Person A for disorderly conduct after an incident at a high school. Respondent, assigned to the conditions unit but working a truancy detail, saw Person A outside the school and asked her if she was a student. Person A, who was 35 years old, took offense to this and things went downhill from there. In any event, after a pat-down on the street and another in front of the desk, no contraband was found.

Respondent then took Person A into the bathroom to search her. Person A's understanding was that this was to be a station house search of the scope delineated in Patrol Guide § 208-05 (1)(B), Search at Police Facility. This search is to be performed when a prisoner is brought to the station house after an arrest. A "thorough search of the subject's person and clothing" is to be conducted in order to remove lawful but dangerous items, as well as "weapons, contraband, and evidence" not previously found upon a frisk at the scene. See PG § 208-05 (1)(B)(1). "[O]uter garments such as overcoats, jackets, sweaters, vests, hats, wigs, ties, belts, shoes and socks, handbags, and wallets" are to be removed. The remaining clothing, i.e., shirts, pants, dresses or skirts, "will be examined by grabbing, crushing and squeezing the garments and by sliding the hands across the body to detect articles that may be underneath or sewn to the clothing." See PG § 208-05 (1)(B)(2).

It was not disputed at trial that under the definitions of the Patrol Guide, a strip search includes "any search in which an individual's undergarments (bra, underwear, etc. . .) and/or private areas are exposed or in which an individual['s] clothing is removed, lifted, pulled up or pulled down to expose undergarments or private areas." See Interim Order No. 5, promulgated Feb. 9, 2009 (but incorporating a 2004 Finest message).

Person A said in her CCRB statement that Respondent had her “pull my bra.” Respondent told Person A to “hold up” her skintight turtleneck sweater, “hold it up like this.” Respondent then “went around my bra.” She “[f]elt underneath it and went around the line of the bra, like went around it like that.” When asked, “And were your breasts ever exposed? Did she ever have you take your bra off?” Person A said, “Yeah, my bra was unsnapped in the back.” When asked, “Did she do that, or did she tell you to do that?” Person A said, “I think I’m the one that did that.” When asked, “[W]as the bra off or lifted up completely?” Person A answered, “Yeah, it was lifted up. She saw my bare breasts.”

Respondent denied that she viewed Person A’s undergarments or saw her nude body. Respondent testified that to perform the PG § 208-05 (1)(B) search, she escorted Person A to the cell area bathroom so as to afford her more privacy. This was her practice with female prisoners because, in her experience, the male prisoners caused a ruckus if they observed a female prisoner being searched.

Respondent testified that she took Person A into the bathroom, which had a door that could close. Respondent told Person A to untuck her shirt, fold it at the bottom, and lift it around her navel. She then had Person A put her shirt down, and, keeping her shirt on, grab the front of her bra with both hands and pull it out from her breasts. This was so that anything tucked between Person A’s body and the bra could fall out. Respondent also felt around the back and shoulder straps of the bra to check for hidden items. At no time, Respondent testified, did she observe the bra itself.

The Department’s case relies entirely on hearsay. Although hearsay is admissible in this forum, see Matter of Avala v. Ward, 170 A.D.2d 235 (1st Dept. 1991), there are significant reasons for caution in cases like this that present close questions of credibility. The hearsay is

central to the Department's case, so there is a question of basic fairness in using the hearsay to reach a finding of fact. See Case No. 77005/01, p. 6 (May 27, 2002) (hearsay declarations are insufficient to support findings of guilt in cases that pose close questions of credibility).

The Department relies on Person A's assertion that Respondent had her "hold up" her shirt, that her bra was "lifted up," and that her breasts were exposed to Respondent. Thus, Person A's believability is crucial to the Department's case. The Department offered no evidence to corroborate Person A's claims, other than pointing to Respondent's CCRB interview, in which she stated that she told the prisoner to lift up her shirt and hold it out. Respondent testified at trial that she was referring to the first part of the procedure, in which she told Person A to lift and hold her shirt to her navel to allow anything in the waistband to be seen or fall out.

Person A was contacted by the Department in reference to this case but did not appear for trial. In light of her failure to testify, the Court cannot observe her demeanor, explore possible motives to lie, or assess the credibility of her accounts after the test of cross-examination. This is especially true because much of Person A's CCRB statement was consistent with Respondent's trial testimony. She stated that Respondent directed her to "pull my bra," the exact instruction Respondent testified she gave. What Person A meant by "hold it up like this," referring to her shirt, is unknown because no one described it on the record. It might or might not have been consistent with Respondent's testimony. The same can be said of Person A's statement that her bra was lifted up. Respondent testified that the bra was lifted up, but under Person A's shirt, to allow any contraband to fall out. In fact, while Person A claimed that her breasts were exposed, there is no actual statement on the record as to the point at which this happened, or what she was told to do with her shirt at the time.

As a party to the action, Respondent was an interested witness. See People v. Agosto, 73 N.Y.2d 963, 967 (1989) (defendant is interested witness as a matter of law); Coleman v. New York City Transit Auth., 37 N.Y.2d 137, 142 (1975) (an actor in the transaction, having motive to shield self from blame, is an interested witness, even if not a party). Her testimony, however, was straightforward, detailed, and fully explanatory of her actions. She testified to a step-by-step procedure that avoided the exposure of Person A's breasts or her bra, but also allowed for any contraband to be revealed. Cf. Case No. 84359/08, p. 22 (Jan. 4, 2010) (crediting officer's account that she felt the bra through the prisoner's shirt); compare Case No. 85906/09 (May 12, 2010) (having the prisoner's undergarments exposed to view constituted a strip search). Standing against Person A's bare and unexamined hearsay account, Respondent's version of events is far more credible.

The Court rejects the Department's attempt to turn Respondent's CCRB statement about having Person A lift her shirt and turning it inside out into an admission that her bra was exposed. There is no reason that this had to mean at a level above the breasts. Respondent's testimony that she meant for Person A to fold her shirt at her navel level was, in the Court's view, more reasonable than the Department's view of that CCRB statement.

Moreover, while the Advocate claimed on summation that no more detail was given in the interview about lifting the shirt, making suspect Respondent's testimony about the search as a whole, Respondent was not impeached any further on cross examination concerning her CCRB interview. Nor was Respondent's interview introduced as evidence in chief. Therefore, the Court cannot conclude that Respondent's CCRB statement was any kind of admission that Person A's bra was visible.

The Advocate ridiculed Respondent's testimony on summation, asserting that it was unbelievable that she would have told Person A, "[J]ust untuck your shirt, just lift it out a little, just turn it up a little bit, I am not going to have you turn anything else out. Certainly don't expose your bra, certainly don't expose your breasts. I want to make sure drugs aren't in your bra, but I don't want you to expose it. Just a little bit, just untuck it. By the way, grab your bra and shake, but don't grab it from the inside, because guess what, you are going to expose your bra. Grab it from the outside, Person A, pull it out and shake it." The Department contended that Person A would not have followed such exact directions.

The Department's argument is unavailing. Respondent never testified that she told Person A that she should not expose her undergarments. Rather, Respondent testified that she gave Person A specific instructions to make sure that did not happen. There was no evidence that Person A, a nursing student, was incapable of understanding and following those instructions. Respondent testified that Person A did not give her any problems during the search.

The Court also rejects the Department's assertion that the only reason Respondent took Person A into a private area to be searched was that the prisoner's undergarments or intimate areas of her body would be exposed. As Respondent testified, even a clothed search of a female prisoner would be likely to lead to a rowdy commotion from the male prisoners. Lukas, the desk officer, confirmed in his CCRB statement that female prisoners were routinely searched in the bathroom after a cursory emptying of the pockets at the desk.

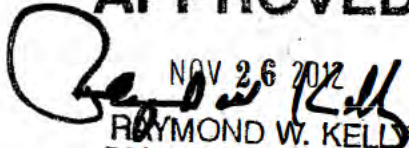
In sum, the Court credits Respondent's testimony. Because, under Respondent's account, no strip search occurred, she did not conduct one without authorization (Specification No. 1). Nor was she required to document the non-strip search in the command log or other arrest

paperwork (Specification No. 2). Accordingly, Respondent is found Not Guilty of both specifications.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner ■ Trials

APPROVED

NOV 26 2012
RAYMOND W. KELLY
POLICE COMMISSIONER